



POLICE DEPARTMENT

March 31, 2023

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th Floor
New York, NY 10007

Re: CCRB Case No. 202106151 (Incident Date: October 7, 2021) regarding Detective Sean Donohue,
Tax No. 932565 (DADS No. 2023-27823)

Dear Mr. Darche:

The Police Commissioner has reviewed the request for Charges and Specifications in connection with CCRB Case No. 202106151, pertaining to Detective Sean Donohue. Having analyzed the facts and circumstances of this matter, the Police Commissioner has determined that to pursue Charges and Specifications against Detective Donohue would be detrimental to the Police Department's disciplinary process.

In this matter, Detective Donohue was driving his sergeant and was responding to a priority radio call in which a 911 caller described having been menaced with a firearm by an individual. After the individual was identified by the first officers on the scene, he fled on a scooter at a high rate of speed on the sidewalk. Detective Donohue drove toward the location and observed the fleeing suspect on the sidewalk rapidly approaching him and reasonably believed that the suspect may have been armed with a firearm. In an effort to apprehend the fleeing suspect, and to prevent further danger to the public from the suspect, Detective Donohue pulled his vehicle into a driveway in a position where he anticipated the suspect would stop or drive around him. The suspect made the decision to try to go around the police vehicle and ended up striking the front bumper of the police vehicle with his scooter. The unanticipated presence of large debris on the sidewalk contributed to the limited space for the scooter to pass in front of the police vehicle. The suspect's scooter fell to the ground and the suspect stopped and placed his hands up and was arrested without further incident.

It must be noted that the fleeing suspect stated to CCRB that he had been "knocked off the scooter and onto the ground" by the impact and that he "tried to stand on his own, but... officers quickly lifted him up" before handcuffing him. Body-worn camera footage from the sergeant's camera clearly showed the individual's statement to be false, as the suspect was standing with his hands in the air immediately after his scooter came into contact with the police vehicle. Also of note is the fact that the sergeant, who was the closest witness to the event, and whose body-worn camera provided the only partial video evidence of the incident, was never interviewed by the CCRB. This oversight renders CCRB's investigation incomplete and therefore calls its findings into question.

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The entirety of this matter was fully investigated by Department investigators, and that investigation found that no misconduct could be substantiated against Detective Donohue. A review of the CCRB's investigative file revealed no new or additional evidence, or any allegations of other misconduct, that would cause the Department to question or revisit these findings.

Therefore, as provided for within the 2012 Memorandum of Understanding between the CCRB and the Police Department, in light of the parallel investigation's findings, the Police Commissioner intends, in the interest of justice, to retain jurisdiction over this matter and take no disciplinary action against Detective Donohue.

Yours truly,

A handwritten signature in black ink, appearing to read "DC Soto", with a long horizontal flourish extending to the right.

Lourdes Soto

Deputy Chief

Commanding Officer

Police Commissioner's Office



ERIC L. ADAMS
MAYOR

CIVILIAN COMPLAINT REVIEW BOARD
100 CHURCH STREET 10th FLOOR
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ARVA RICE
INTERIM CHAIR

April 7, 2023

The Honorable Keechant L. Sewell
Police Commissioner
New York City Police Department
One Police Plaza
New York, NY 10038

Re: CCRB v. Detective Sean Donohue (932565)
Disciplinary Case No.: 2023-27823

Dear Commissioner Sewell:

I am writing in response to the letter from Deputy Chief Lourdes Soto, dated March 31, 2023, informing the Civilian Complaint Review Board (hereinafter referred to as “CCRB”) of your intent to retain the case and take no disciplinary action against DET Sean Donohue. Pursuant to Paragraph 6 of the April 2, 2012, Memorandum of Understanding between CCRB and the New York City Police Department (hereinafter referred to as the “MOU”), I am responding to Deputy Chief Soto’s notification.

According to the Summary of Employment History provided by the Department, DET Donohue was found to have committed misconduct in 2007. (Exhibit A). The MOU specifies that “[s]uch instances shall be limited to such cases in which there are parallel or related criminal investigations, or when, in the case of an officer with no disciplinary history or prior substantiated CCRB complaints, based on such officer’s record and disciplinary history the interests of justice would not be served.” As Deputy Chief Soto’s letter indicated that the Department’s investigation into the incident was disciplinary in nature, rather than a criminal investigation, and DET Donohue has prior Departmental discipline, this matter is not eligible to be retained and the disciplinary process must proceed.

I am confident that when the CCRB presents its evidence at the Departmental trial, it will persuade you that DET Donohue committed misconduct as described in the charges it filed against DET Donohue, that he struck § 87(2)(b) with a Departmental vehicle without police necessity and that he damaged § 87(2)(b) property without police necessity.

Respectfully submitted,

Jonathan Darche
Executive Director
NYC Civilian Complaint Review Board



POLICE DEPARTMENT

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th floor
New York, NY 10007

October 18, 2023

Re: CCRB Case No. 202106151 (Incident Date: October 7, 2021) regarding Sergeant Sean Donohue, Tax No. 932565 (DADS No. 2023-27823)

Dear Mr. Darche:

The former Police Commissioner reviewed your letter, dated April 7, 2023 concerning the Civilian Complaint Review Board ("CCRB") case involving Sergeant Sean Donohue, and considered the issues you raised in that letter.

Notwithstanding those concerns, the Police Commissioner nevertheless maintained that it would be detrimental to the Police Department's disciplinary process to allow the Civilian Complaint Review Board to continue its prosecution of Sergeant Donohue, for the reasons expressed in the March 31, 2023 letter from this office.

Therefore, in light of the findings of the parallel investigation undertaken by this Department, as permitted under Provision Two of the Memorandum of Understanding, the former Police Commissioner affirmed her decision to exercise Provision Two of the Memorandum of Understanding and directed that Sergeant Donohue receive no disciplinary action in connection with this matter.

It should be noted that because the statute of limitations in this matter expired on April 7, 2023, this matter was considered closed by this Department on that date, at the former Police Commissioner's direction.

Sincerely,

Anthony S. Marino
Deputy Chief
Commanding Officer
Police Commissioner's Office